

Uncovering the Unconscionable: The United States, the International Military Tribunal, and the Failure to Ratify the Genocide Convention

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Introduction

In 1944, a Polish lawyer and academic named Raphael Lemkin coined the term “genocide” to describe the attempted destruction of entire groups of people, publishing the term in his book *Axis Rule in Occupied Europe*, which recorded the systematic nature of the Nazi plan to exterminate Jews and other groups across the European continent. In the aftermath of World War II, Lemkin’s word “genocide” quickly assumed a rhetorical and symbolic status that far exceeded that of other international crimes, such as war crimes or crimes against humanity. For example, in 1945, one year after Lemkin first published the term, a prosecutor at the International Military Tribunal in Nuremberg, Germany referred to genocide as the “greatest crime of all.” Countless books and articles now identify genocide as the “crime of all crimes.”

Genocide’s legal status is generally traced to the Nuremberg Charter, the document that laid out the procedure and charges of the International Military Tribunal (IMT), where the United States, France, Britain, and the Soviet Union collectively tried the leaders of the Nazi movement for aggressive war, crimes against humanity, and war crimes. The US organized the IMT, including funding the entire tribunal, financially supporting the delegations of the other three victorious powers. Following the IMT, the administration of President Harry S. Truman collaborated with the newly-formed United Nations to further codify genocide into international law through the Convention on the Prevention and Punishment of the Crime of Genocide. Signed by the US and over a dozen other countries on December 11, 1948, the Genocide Convention defines genocide as acts committed “with the intent to destroy, in whole or in part, a national, ethnic, racial, or religious group, as such.” On July 16, 1949, Truman sent the Convention to the Senate for ratification.

However, after playing a major role in the drafting of both the Nuremberg Charter and the Genocide

Convention, the United States failed to ratify the Convention, not only in 1948, but for the next forty years. The US finally ratified the Convention in 1988 under President Ronald Reagan. Since then, and despite its obligations under the Genocide Convention, the US has failed to exert significant effort to prevent or punish genocide. The US failure to ratify the Genocide Convention or to take any action toward genocide prevention and punishment is incongruous with the US government’s important role in formulating and formalizing genocide as a crime under international law. Why then did the US formalize genocide as a crime through the Nuremberg Charter, IMT, and Genocide Convention? And why, after playing such a large role in the codification of genocide into international law, did the US decline to ratify the Genocide Convention in 1949? In this paper,

I will first discuss the International Military Tribunal, demonstrating that despite popular conceptions of the Nuremberg Trials as an attempt to punish Nazi leaders for the Holocaust, US support for the IMT was actually driven by the strategic interest in preventing future wars. The US hoped that punishing and criminalizing so-called “crimes against peace,” also known as the crime of aggressive war, would deter individuals from participating in a future organization akin to the Nazi party. Second, I will argue that during negotiations on the Genocide Convention, the US government was primarily concerned with maintaining the inviolability of its own sovereignty in the face of incipient great power competition with the Soviet Union. This led the US delegation to remove provisions of the Convention related to destruction of cultures, also called cultural genocide, and United Nations Security Council preventive jurisdiction, weakening the final document. Finally, I will explain how concerns that the Genocide Convention would enable both domestic and foreign condemnation of the US for its treatment of Black Americans led to the Convention stalling in the Senate. Together, these three time periods—the 1946

International Military Tribunal, 1948 negotiations of the Genocide Convention, and 1948–1951 debates on ratification of the Convention—demonstrate that US commitment to the punishment and criminalization of genocide has been dramatically overstated. While US actions during and immediately after World War II were occasionally driven by moral principles, when those moral principles came into conflict with strategic interest, strategic interest always won out. The US was willing to formalize the crime of genocide only to the extent that doing so would benefit the US strategic position, first, in the immediate postwar period, by reducing the chances of a future world war, and subsequently by giving the US an advantage in its geopolitical competition with the Soviet Union. Therefore, while specific domestic and foreign policy concerns prevented the US Senate from ratifying the Genocide Convention in 1949–50, this failure is ultimately consistent with broader trends in US foreign policy, considering that the US government, even directly after the Holocaust, never prioritized the criminalization of genocide.

World War II

While World War II is now treated as both a military and a moral victory by the Allies over the Axis powers, US actions before and during World War II demonstrate that when the US government's moral outrage came into conflict with self-interested strategic logic, strategy was always the primary determinant of foreign policy. For example, on November 12, 1940, thirteen months before the US entered World War II, a Navy Department memorandum declared that: Our major national objectives in the immediate future might be stated as preservation of the territorial, economic, and ideological integrity of the United States, plus that of the remainder of the Western Hemisphere; the prevention of the disruption of the British Empire... and the diminution of the offensive military power of Japan.

As this plan demonstrates, US goals related to World War II were entirely strategic, focusing on maintaining a favorable balance of power and countering the rise of regional hegemony. Nowhere does the document identify Japanese or German persecution of and violence against civilians as a potential incentive for American intervention. Indeed, US entry into the war was ultimately driven by national security. In response to the Japanese surprise attack on Pearl Harbor, the US entered the war against Japan on December 8, 1941. Three days later, after Germany declared war on the US, the US reciprocated, officially committing

itself to world war in both theaters.

Although US entry to the war was motivated by strategic rather than moral interests, throughout the 1930s and 1940s, the US government and US public became increasingly aware of the extent of Nazi persecution against Jews and other groups. As early as March 1940, the New York Times published reports of mass murders of Jews in Warsaw. One year later, on April 27, 1941, a Times article titled “The Master Race in Action” described the creation of the Krakow and Warsaw Ghettos, the razing of synagogues, and the forced displacement of Jews to occupied Poland. In addition to public reporting, private documentation also revealed the scope of the Nazi plan. For example, in 1942, Raphael Lemkin, the originator of the term genocide, who had spent years documenting the scope of Nazi atrocities, wrote a letter to President Franklin D. Roosevelt warning him of Hitler's intentions to commit mass violence that far exceeded the acceptable bounds of warfare. After Roosevelt responded by urging Lemkin to be patient, Lemkin “uncovered the unconscionable: that the Allies were aware of the atrocities and were ignoring the message.” The US government's willful ignorance and inaction persisted throughout the first three years of the war.

While the US government had no intention of intervening in the Holocaust, beyond attempting to win the war against Germany, by 1942, the government was already making plans for how, given the scope and severity of Nazi atrocities, to move forward after the war's close. In October, Roosevelt declared “the intention of this Government that the successful close of the war shall include provision for the surrender to the United Nations of war criminals,” following which, “just and sure punishment shall be meted out to the ringleaders responsible for the organized murder of thousands of innocent persons.” While falling short of a ringing condemnation of Nazi atrocities, this commitment laid the groundwork for the later IMT by binding the US to just punishment and firmly established that Nazi leaders would be treated as war criminals, a category of international crime restricted solely to wartime acts.

Even as the US focused its condemnation on Nazi actions committed during and in pursuit of aggressive war, the government was eventually forced to acknowledge that the scope of Nazi atrocities far exceeded any precedent of wartime violence against civilians. On November 25, 1942, the US State Department reported that the Nazis planned to exterminate all Jews in Europe. One month later,

on December 17, the Allied governments, along with the French National Committee, released a statement titled, “German Policy of Extermination of the Jewish Race,” which “condemn[ed] in the strongest possible terms this bestial policy of cold-blooded extermination” and committed to “insur[ing] that those responsible for these crimes shall not escape retribution.” Although these public statements put an end to the Allied governments’ silence on the Nazi extermination plan, the statements were not accompanied by action, such as bombing the trains leading to the concentration camps, that could have concretely disrupted the Holocaust. In fact, by committing to postwar retribution for Nazi war criminals, the Allies tacitly legitimized their inaction by implicitly stating that justice could only be meted out after the war’s close, not during the war itself.

As the war progressed, both moral and strategic considerations motivated US condemnation of Nazi atrocities. For example, in 1944, President Roosevelt gave a speech in which he declared that “the wholesale systematic murder of the Jews of Europe” was “one of the blackest crimes of all of history,” describing German actions as “acts of savagery” and “crimes against humanity.” While Roosevelt’s rhetoric, especially his use of terms such as “savagery” and “blackest crimes,” invokes moral outrage, his statement was also driven by a strategic interest. He hoped that threatening retaliation against individuals who participated in mass atrocities would disincentivize German citizens from participating in the war effort. After promising individual punishment for those who contributed to the German war machine, Roosevelt urged the German people to “show the world by his action that in his heart he does not share these insane criminal desires,” a clear attempt at encouraging disobedience among rank-and-file Nazi party members. As this statement shows, even during the height of the Holocaust, US leaders’ concern for victims of the Nazis was instrumentalized for strategic ends, especially an interest in disrupting the mass conformity and obedience that fueled the Nazi war machine.

In May 1945, Germany surrendered, and, following the US nuclear attacks on Hiroshima and Nagasaki, Japan surrendered in September. On June 26, 1945, while the US was still fighting in the Pacific theater, fifty nations met in San Francisco at the United Nations Conference on International Organization to sign the United Nations Charter, which created a system of global governance and, thanks in large part to US support, included general language about the need to

protect human rights. The Charter came into force four months later, on October 24, 1945. One month later, the International Military Tribunal began in Nuremberg, Germany.

The International Military Tribunal

Today, the International Military Tribunal is frequently treated in popular culture—from documentaries to news stories to museum exhibits—as a resounding rebuke to Nazi ideology, the foundation of contemporary human rights law, and the archetypal usage of the term genocide. While this narrative is partially grounded in reality, popular understandings of the IMT focus excessively on the tribunal’s role in punishing genocide and crimes against humanity and obscure the more significant US motivation of preventing future aggressive war by criminalizing individual involvement in so-called crimes against peace. In fact, the US played a minimal role in the inclusion of genocide at the IMT, and US leaders, including President Truman, Chief Counsel Robert H. Jackson, and Judge Francis Biddle, did not see the criminalization of genocide as one of the main purposes or successes of the IMT. During World War II, the Allies had planned to punish Nazi war criminals after the war’s end, including for mass violence against civilians. For example, in the Moscow Declaration of 1943, President Roosevelt, Prime Minister Winston Churchill, and Premier Joseph Stalin declared that their governments had received “evidence of atrocities, massacres and cold-blooded mass executions which are being perpetrated by Hitlerite forces.” The three leaders then stated their intention to send German officers and Nazi party members back to the countries where their crimes had been committed, “without prejudice to the case of German criminals whose offenses have no particular geographical localization and who will be punished by joint decision of the government of the Allies.” In other words, as early as 1943, the Allies intended to develop a solution to the problem of major Nazi war criminals, which they publicly justified by condemning Nazi violence against civilians.

Interestingly, before the end of the war, the US government’s public and private motivations were relatively consistent, combining moral and strategic considerations. On April 19, 1945, days after Truman took office, Special Counsel to the President Samuel Rosenman wrote a memorandum to the new president emphasizing the need to prove and punish the crimes against humanity committed by Nazi leaders and to criminalize the conspiracy “to persecute and rob minorities (before 1939 and after 1939), to occupy

neutral countries by force and in violation of treaties, to commit war crimes and atrocities of all kinds, etc.” This statement reflects the growing consensus within the US government that German crimes did not “consist solely of individual outrages,” but rather were “the result of a systematic and planned reign of terror within Germany” that dated back to 1933. The Americans also argued that, the dubious legal basis for such charges notwithstanding, Nazi leaders should be charged with pre-war crimes in “the interests of postwar security and a necessary rehabilitation of German peoples, as well as the demands of justice.” While US decisions during World War II were primarily driven by strategic considerations, early discussions of how to punish Nazi leaders invoked moral rather than purely strategic arguments, transcending the existing bounds of international law, which did not criminalize persecution against a state’s own citizens. These concerns led the US, UK, and Soviet Union to devise a concrete plan for the punishment of major Nazi leaders. While Churchill and the British War Cabinet supported a simple execution via firing squad, Stalin insisted upon a trial. With US support, the Allies planned the International Military Tribunal, and on August 8, 1945, the three countries signed the London Agreement and the Nuremberg Charter. The latter document included the charges against the defendants, including a brief mention of genocide as a subtype of war crime. In contrast to Lemkin’s original definition, positioning genocide as a war crime excluded peacetime genocides. Between November 20, 1945 and October 1, 1946, the victorious powers tried 22 Nazi leaders, three of whom were acquitted and twelve of whom, including Hans Frank and Hermann Göring, were sentenced to death. The remainder served time in prison.

In 1945, the US government sought to justify its participation in the IMT to both a domestic audience, which was asked to fund the entire tribunal, and to a global audience that might interpret the tribunal as victors’ justice. To address these concerns, Robert H. Jackson, US Chief of Counsel at the IMT and an Associate Supreme Court Justice, argued that:

To free [Nazi leaders] without a trial would mock the dead and make cynics of the living. On the other hand, we could execute or otherwise punish them without a hearing. But indiscriminating executions or punishments without definite findings of guilt, fairly arrived at, would violate pledges repeatedly given, and would not set easily on the American conscience or be remembered by our children with pride. The only other course is to determine the

innocence or guilt of the accused after a hearing as dispassionate as the times and horrors we deal with will permit, and upon a record that will leave our reasons and motives clear.

This statement situates US motivations for participating in the IMT around domestic concerns, including the need to satisfy the “American conscience” and to fulfill prior promises to fairly deal with Nazi leaders. Jackson also declared that the definition of an international crime at the IMT should prioritize “those things which fundamentally outraged the conscience of the American people and brought them finally to the conviction that their own liberty and civilization could not persist in the same world with the Nazi power,” seeking to remind the American public why they had a personal stake in punishing Nazi aggression.

Jackson also laid out motivations that were not specific to the American public, such as the need to unequivocally condemn Nazi actions and establish a clear historical record—in Jackson’s own words, to “establish incredible events by credible evidence.” However, while the US undoubtedly wanted to establish that Nazi actions were unacceptable, fulfill its wartime promises, and leave a clear historical record, these were not Roosevelt and Truman’s ultimate motivations. Instead, US leaders intended to use the IMT to establish international law and global norms that could check future world wars in which the US might be compelled to participate. This strategy was based on three principles.

First, the US wanted to use the IMT to demonstrate that in the postwar period, international cooperation was both possible and necessary. In 1945, in his opening statement of the United Nations Conference on International Organization in San Francisco, Secretary of State Edward Stettinius Jr. quoted Roosevelt:

The structure of world peace cannot be the work of one man, or one party, or one nation. It cannot be an American peace, or a British, a Russian, a French, or a Chinese peace. It cannot be a peace of large nations – or of small nations. It must be a peace which rests on the cooperative efforts of the whole world... There can be no middle ground here. We shall have to take the responsibility for world collaboration, or we shall have to bear the responsibility for another world conflict.

Just as Roosevelt’s early support for an international tribunal led to US participation in the IMT, his philosophy that great power collaboration was the solution to the problem of world peace continued to influence US policy even after his death. In addition to structuring

US support for the UN, this Rooseveltian attitude towards great power collaboration also influenced US participation in the IMT. In perhaps his most famous quote from the IMT, Jackson declared: "That four great nations, flushed with victory and stung with injury, stay the hand of vengeance and voluntarily submit their captive enemies to the judgment of the law is one of the most significant tributes that power has ever paid to reason." Similarly, following the conclusion of the trial, Biddle wrote to Truman: "It was your hope that Nürnberg might serve as a working example for the world of how four nations could achieve results in a specific field of endeavor." Both of these statements position international cooperation not merely as an instrument to more effectively punish the Nazi war criminals, but as an end goal in and of itself, whose value lay in establishing a lasting great power peace. Although this cooperation quickly descended into competition between the US and the Soviet Union, in the immediate postwar period, the US government nonetheless hoped to create a world characterized by unprecedented great power collaboration that would minimize the likelihood of a future world war in which the US might be compelled to intervene.

Second, the US used the IMT as an avenue to self-consciously and deliberately shape international law by establishing the principle of individual responsibility for international crimes. The architects of the IMT rejected "the obsolete doctrine that a head of state is immune from legal liability," transforming international crimes from the provenance of states to the responsibility of individuals. Biddle argued that the "most important pronouncement" of the IMT was the establishment of the precedent that individual decision-makers could not hide behind the facade of state responsibility. Just as during the course of the war, Roosevelt threatened retribution for individuals in order to encourage defections, after the war the US government successfully institutionalized this strategy by establishing the principle of individual responsibility for international crimes. While heads of state akin to Hitler always faced a probable death in the event that they lost an aggressive war, the IMT legitimized this outcome under international law and established that lower-level decision-makers would similarly face justice for their actions. Following orders was not an acceptable excuse for violations of international law. This was intended to prevent the rise of a future revisionist state akin to Nazi Germany by disincentivizing individuals from participating in war and state violence.

Third, the US sought to criminalize aggressive

war, which Jackson described as "the crime which comprehends all lesser crimes." In 1945, Jackson wrote in a public report to President Truman that, "The United States is vitally interested in recognizing the principle that treaties renouncing war have juridical as well as political meaning." In other words, the US recognized that states' interest in preserving peace was fundamentally political, and could therefore change as political interests changed. To address this issue, the US wanted to create a system of international law that would permanently constrain the ability of states to go to war, even if they had a political incentive to do so. Had this system worked, it would have benefited the US by reducing the chance that the US would be drawn into a future world war and preserving the balance of power as it was in 1945, with the US as both regional and global hegemon. Criminalizing aggressive war also strengthened the US position as a global leader of the new world order. As Jackson communicated to Truman in January 1946, many small nations "feel that their future security will be greatly enhanced if we succeed in establishing penalties for wars of aggression." Taking steps to enhance the security of those small countries helped to secure US moral and political legitimacy as a global leader.

The combination of the principle of individual responsibility for international crimes and the designation of aggressive war as an international crime meant that not only world leaders but also bureaucrats and party members could be charged by an international tribunal if their state went to war and lost. This was intended to disincentivize individual participation, not only in crimes against humanity or war crimes, but also in war in general. By establishing a legal basis for the IMT, the US also legitimized its position as a world leader, increasing the feasibility of a liberal, US-led world order based on the principle of voluntary compliance. Therefore, while the IMT is frequently treated as a rounding condemnation of the crime of genocide, the architects of the tribunal actually prioritized great power collaboration, the establishment of individual responsibility for international crimes, and the criminalization of aggressive war over the criminalization of persecution and genocide.

This is not to say that the IMT did not address mass atrocities against civilians, including against particular groups, such as Jews and Poles. In Jackson's opening address, for example, he declared that, "the most savage and numerous crimes planned and committed by the Nazis were those against the Jews," and went on to describe "organized mass violence," "deportation," "mass starvation," and "extermination."

However, the US interest in criminalizing aggressive war shaped the ways in which other atrocities were discussed, including narrowing the scope of genocide to encompass solely wartime violence.

While before the IMT the US—seemingly out of genuine moral outrage at Nazi actions—planned to punish both pre- and post-1939 persecution and violence, by the time that the IMT began in November 1945, the US was only interested in punishing acts committed during wartime and in support of the German war effort. In July 1945, in negotiations over the Nuremberg Charter, Jackson declared that:

[O]rdinarily we do not consider that the acts of a government toward its own citizens warrant our interference. We have some regrettable circumstances at times in our own country in which minorities are unfairly treated. We think it is justifiable that we interfere or attempt to bring retribution to individuals or to states only because the concentration camps and the deportations were in pursuance of a common plan or enterprise of making an unjust or illegal war in which we became involved. We see no other basis on which we are justified in reaching the atrocities which were committed inside Germany, under German law, or even in violation of German law, by authorities of the German state.

This statement demonstrates two key shifts in US policy. First, in contrast to earlier rhetoric, the US now prioritized punishing “unjust or illegal war,” excluding prewar persecution or persecution that was unconnected to German war aims. This deprioritization of moral concerns at the expense of strategic interest quickly became a defining feature of US policy on genocide.

Second, and relatedly, immediately after World War II, the US government became increasingly aware that the same crimes which it was using to punish Nazi leaders could be used to criticize or prosecute US leaders or even ordinary US citizens for domestic racial violence. While crimes against humanity and war crimes were restricted to a wartime context, attempting to punish pre-war Nazi persecution of Jews would make the US vulnerable both to criticism of its domestic human rights record and to charges of hypocrisy. Jackson’s acknowledgement of “regrettable circumstances” in which “minorities are unfairly treated” demonstrates this concern, which continued to grow as the US became more involved in the criminalization of genocide and peaked in 1949–50 during debates over the ratification of the Genocide Convention.

US concern for its own sovereignty and moral reputation, combined with its prioritization of strategic self-interest, minimized the IMT’s emphasis on the newly-coined crime of genocide. In Jackson’s opening address, for example, he made frequent mentions of other international crimes, including war crimes 39 times, crimes against humanity 32 times, aggressive war 28 times, and crimes against peace 7 times. In contrast, the word genocide appears only once in the entire 94-page address, in the section where Jackson reads the Nuremberg Charter. Genocide was included not as a specific category of international crime, but rather as a subset of war crimes, defined as “the extermination of racial and national groups.” The definition of genocide written into the Nuremberg Charter was narrower than Lemkin’s original idea—which would have protected all groups—was intended specifically to punish Nazis for mass atrocities committed in service of its war machine. The definition therefore only included groups that the US was interested in discussing, namely national (Poles) and racial (Jews) groups. The process of narrowing Lemkin’s original definition to coincide with the interests of great power states would persist throughout the negotiation of the Genocide Convention.

Nonetheless, the popular conception that the term genocide gained legal significance at the IMT is not completely unfounded. Despite the sparse references to genocide in the Charter and at the beginning of the trial, the term was invoked multiple times during the actual proceedings of the IMT, although notably not by Americans. Prosecutors repeatedly returned to the term in order to emphasize the extent of German crimes. For example, Sir Hartley Shawcross, a British prosecutor, used the term when declaring that, “Genocide was not restricted to extermination of the Jewish people or of the gypsies,” rhetorically expanding the term’s scope beyond the narrow definition preferred by the Americans. Genocide also began to take on a unique rhetorical status exceeding that of other crimes, as in the statement by French Prosecutor Charles Dubost, who stated of the defendants that “all of these men were, in fact, united in the pursuit of the same political purpose and that all of them have in one way or another participated in the greatest crime of all: genocide.” Similarly, the British Sir David Maxwell Fyfe declared that, “In this indictment is charged not only the murder of millions but a demoniac plan of genocide.” These statements demonstrate that genocide had assumed a status far beyond its intended scope, in which murder with

genocidal intent was worse than regular murder and the crime of genocide was worse than other international crimes. Less than two years after the term was first published in Lemkin's book, genocide had already become the "greatest crime of all."

Even the defense, rather than challenging the juridical legitimacy of a crime whose legal standing postdated the alleged criminal actions, reinforced the perceived legitimacy and power of the crime of genocide. For example, Dr. Hans Marx, counsel for Defendant Streicher, declared in his final presentation to the judges that, "Hitler and Himmler wanted under all circumstances to keep secret the genocide... of the Jews." In this case, Marx chose to argue that his client was trapped within a system determined by his superiors, rather than challenging whether or not genocide had been committed. Notably, this type of argument was precisely what the principle of individual responsibility for international crimes was intended to prevent. Meanwhile, Defendant Alfred Rosenberg declared in his remarks that "Genocide neither at present nor in the future may be permitted against the German people in any way," a remarkable rhetorical strategy considering that he himself was charged with war crimes, including genocide. As Rosenberg's use of the new legal term to protect the German people demonstrates, at the IMT, genocide took on a legitimacy and symbolic resonance that far exceeded the intentions of the IMT's architects. As individual prosecutors and defendants recognized that the term genocide was a useful tool to accomplish their own goals, states—especially the US—became concerned that the term could pose a risk to their sovereignty and reputation.

The IMT also qualified Lemkin's original conception of genocide as destructive violence against a group by adding certain criteria, including implicitly requiring intent to destroy a given group; defining visible, concrete violence, especially murder, as the characteristic genocidal acts; and placing restrictions on which types of groups could be victims of genocide. As genocide evolved to refer to the deliberate physical destruction of groups, some of Lemkin's other ideas, such as his positioning of colonial violence as genocide and his emphasis on the destruction of culture, lost traction. This is not to say that these ideas vanished. In fact, cultural genocide was debated during the process of drafting the Genocide Convention, and continues to have popular appeal today. But the IMT was a key step in the simultaneous formalization and narrowing of the international crime of genocide.

The platforming of the term genocide was

enabled by a US government determined to prevent the outbreak of future wars in which it might be compelled to participate. With this goal in mind, the US government sought to foreclose the possibility of a future revisionist power akin to the Nazi regime by establishing both punishment for and norms against individual participation in aggressive war. By narrowing the scope of international crimes—including genocide—to a wartime context, the US attempted to ensure that only in the context of a major war, in which the it was already likely to be involved, would the US government's be compelled to enforce compliance with international criminal law. However, the US government never intended for the IMT to formalize or codify the international crime of genocide, nor did the US see the criminalization of genocide as a main success—or even a main outcome—of the tribunal.

The Genocide Convention

Negotiations and Drafting of the Genocide Convention

After the IMT, the United States was compelled to participate in the drafting of a Genocide Convention in order to both maintain its moral reputation and ensure that the Convention would not threaten US interests. However, US participation in the drafting process should be understood less as a good-faith effort to codify the prohibition against genocide than as an attempt to protect and advance US strategic priorities. The result was a weakened Genocide Convention with a definition of genocide that was significantly narrower than Lemkin's original definition, notably excluding cultural genocide, and that lacked meaningful enforcement power.

After his failure to include genocide in the IMT indictment, Raphael Lemkin successfully lobbied the governments of India, Cuba, and Panama to sponsor a UN General Assembly resolution calling for a global genocide convention. Following Lemkin's efforts, the UNGA passed two resolutions on December 11, 1946. UNGA Resolution 95(1), which called for "a general codification of offences against the peace and security of mankind, or... an International Criminal Code" to reaffirm and codify the international legal principles contained in the Nuremberg Charter, reflected the US priorities of establishing individual responsibility for international crimes. The resolution's emphasis on peace and security reflects the US interest in criminalizing aggressive war and other international crimes connected to war.

On the other hand, Lemkin's project, UNGA

Resolution 96(1), defined genocide as, “a denial of the right of existence of entire human groups, as homicide is the denial of the right to live of individual human beings” and called on the Economic and Social Council to develop a draft convention on the prevention and punishment of genocide. This focus on the “right to existence” of “human groups” was vague enough to encapsulate both cultural and colonial genocides. Such a general criminalization of mass violence against any category of people would have meant, in Douglas Irvin-Erickson’s words, that, “almost any conceivable instance of war, or for that matter almost any group-selective repression committed or tolerated by states, would have been punishable as genocide.” And yet the Resolution’s equation of genocide and homicide also foreshadowed the fact that specific types of violence, particularly murder, would come to be associated with genocide, while other acts, such as denial of language and cultural rights, would not.

No matter how expansive a definition of genocide the UNGA adopted, during negotiations on the draft convention, neither the US nor the Soviet Union were willing to codify such an open-ended definition of genocide into international law. In 1948, ECOSOC created an ad hoc committee to draft the Convention, with China, France, Lebanon, Poland, the United States, the Soviet Union, and Venezuela serving as members. Early negotiations focused on which categories of groups would be covered by the convention; an expansive definition that protected any group was not on the table. Similarly, a provision that prohibited attempts to eliminate entire cultures, including through non-violent means such as the destruction of artifacts or the prohibition of certain languages, would have implicated both the US and Canada for their treatment of Native Americans. The US government therefore strongly opposed the inclusion of so-called cultural genocide, becoming the only member of the Ad Hoc Committee to vote against that provision of the Genocide Convention. US opposition was so strong that, “[o]nly because the General Assembly chose to adopt a narrow definition of genocide, notably excluding cultural genocide from its scope, was it able to agree upon a convention in 1948.”

On the other hand, the US strongly supported protections for political groups, which the Soviet Union opposed. While it is possible that the US supported the inclusion of political genocide in the Genocide Convention out of a genuine belief that political participation was important or that political groups were at a high risk of being targeted, US

support was likely motivated by the fact that the US was not likely to be charged with political genocide, while the Soviet Union was. On this issue, the Soviet Union’s position won out, and political groups, as well as economic and social groups, were not protected under the Genocide Convention. In the final phrasing, only “national, ethnical [sic], racial, and religious groups” were protected from the crime of genocide. At the end of the day, it was more important to the leaders of both the US and Soviet Union that their own governments were protected from accusations of genocide than that they retained the ability to accuse an adversary of genocide.

Beyond the exclusion of cultural genocide and of protections for political groups, the great powers further weakened the Genocide Convention to protect the inviolability of state sovereignty. An original UN Secretariat draft of the Genocide Convention described genocide as threat to international peace and security, which would have put given the United Nations Security Council preventive jurisdiction, involving the responsibility to not only stop but also prevent genocides. Both the Soviet Union and China originally supported this, while the other great powers, including the US, were opposed. As a result, the final draft of the Convention did not include UNSC preventive jurisdiction.

Jeffrey Bachman argues that, “the rejection of universal and subsidiary jurisdictions is indicative of a commitment not to the universal prevention of genocide, but rather to maintaining complete and immutable control over one’s own territory even and especially when in the process of committing genocide.” While Bachman’s analysis accurately describes the consequences of removing UNSC preventive jurisdiction, he fails to account for the fact that the great powers were driven not only by an interest in protecting their own territorial integrity, but also by a desire to minimize the risk of engagement in future wars. While preventive jurisdiction would have given the US, as one of the five permanent members of the Security Council, the authority to legitimately intervene in other countries, the US was less interested in expanding its already-significant power than in minimizing the chance that it might be compelled to enter a future war. Preventive jurisdiction could have forced the US to intervene even when doing so would not benefit, or would actually harm, its strategic interests. The US was therefore unwilling to commit itself to intervening to prevent a future revisionist regime from committing genocide against its own people, a position that followed naturally from the US

government's conduct both during and immediately following World War II.

Instead, the final Genocide Convention focused on territorial jurisdiction, with the consequence that, in Bachman's words, "there is very little states are obliged, let alone legally permitted, to do when genocide is committed within the sovereign territorial borders of another state." Because it lacks preventive jurisdiction, the Genocide Convention is often regarded as representing, to borrow Donna Lee-Frieze's phrasing, a conflict between the "moral and ethical consciousness of the international community" and the "realist notion of state sovereignty." Morally, states are obligated to prevent genocide, but the structure of the international system limits their ability and willingness to do so. Rather than resolving this tension by institutionalizing the right and obligation to prevent genocide into international law, the Genocide Convention worsened the paradox by simultaneously upholding sovereignty and criminalizing genocide, creating a crime with no feasible means of prevention. The US position during the negotiations of the Genocide Convention was consistent with its lukewarm stance towards the inclusion of genocide in the IMT: the US wanted to condemn the Holocaust, preserve its own reputation as a global leader, and maintain leverage over the Soviet Union during an era of great power competition, but was unwilling to commit to involvement in future wars or give other countries leverage to undermine US sovereignty. Throughout the negotiating process, the US therefore repeatedly removed provisions that would have threatened US interests, including references to cultural genocide and preventive jurisdiction, while pushing for those that would threaten the Soviet Union. This was not a good-faith effort, but rather, as Bachman argues, "a toothless convention that did little more than register that the great powers were outraged by the crimes of the Holocaust."

Failure to Ratify

The US failure to ratify the Genocide Convention was consistent with the broader trend in US foreign policy of prioritizing strategic interests over moral positions. While the US signed the Convention on December 11, 1948, three days after it was approved by the UNGA, opposition in Congress stymied the US ratification process. In particular, concerns about growing great power competition and the impact of the Convention on Jim Crow segregation stalled the Convention in the Senate Foreign Relations Committee, where it remained for the next twenty-one years.

From the beginning, the ratification process was heavily influenced by the rising tensions between the US and the Soviet Union. On June 16, 1949, when President Truman sent the Convention to the Senate for ratification, he declared that, "America has long been a symbol of freedom and democratic progress to peoples less favored than we have been and... we must maintain their belief in us by our policies and our acts." The words "freedom" and "democratic progress" serve as counterpoints to communism, an allusion to ideological competition between the US and the Soviet Union. Furthermore, by justifying the ratification of the Genocide Convention not only on the Convention's own merits, but also on its value for enhancing the moral reputation of the US, Truman conveyed the instrumentality of the term genocide for US strategy. Ratifying the Genocide Convention was useful because it would allow the US to win over "less favored"—meaning Third World—countries, and therefore to gain an edge in the ideological struggle with the Soviet Union.

By framing the ratification process around this ideological competition, Truman set the terms of the debate, ensuring that the Senate's deliberations would also revolve around questions of political, rather than moral, value. Shortly after receiving the Convention, on July 29, 1949, the Chairman of the Senate Committee on Foreign Relations created a Subcommittee on the International Convention on the Prevention and Punishment of the Crime of Genocide, which heard statements from both proponents and opponents of the Convention. In his witness statement to the subcommittee, Deputy Undersecretary of State Dean Rusk framed ratification of the Convention as an asset for US strategy, arguing that the Convention would mitigate future refugee crises and minimize the chance that the US would have to return to war. The latter point demonstrates the significant extent to which US postwar strategy was focused on preventing the outbreak of a future world war in which the US might become involved. By arguing that the Convention would reduce the chance of future world wars, Rusk extended the same logic that the US used to criminalize aggressive war at the IMT, connecting international law to US strategic priorities.

At the same time, Rusk recognized that opponents of the Convention might argue that ratification would negatively affect US sovereignty by placing constraints and demands on US domestic law. Rusk therefore argued that the Convention was not self-executing. In practical terms, this means that Congress would have to amend the Federal Criminal Code before genocide

prosecutions could proceed in federal courts. This further shows how US strategic interests undermined any good-faith effort to criminalize genocide: Rusk was suggesting that ratifying the Convention—even if US domestic law was not modified to be compatible with the Convention’s terms—would benefit the US reputation and strengthen the anti-genocide norm, all without requiring the US to make any concessions regarding its own sovereignty.

Just as proponents of the Convention focused on its positive effects on US interests, opponents framed their objections around negative domestic and foreign policy consequences. The American Bar Association, a rising political force throughout the 1940s and 1950s, passed a resolution opposing US ratification of the Genocide Convention. ABA representatives then testified before the Senate subcommittee. For example, the ABA’s Alfred J. Schweppe objected to the Convention on a number of counts, including the idea that individuals could be charged with genocide even if they had not received the support of the government; the exclusion of political groups; the reference to national, ethnic, racial, and religious groups ‘as such’; the inclusion of mental harm as a genocidal act; and the inclusion of the phrase “in part.” Carl B. Rix, also of the ABA, argued that the Convention was incompatible with the US Constitution, while George A. Finch declared that his criticism was “based upon the effect of treaties upon our State laws and constitutions.” Because the records of the subcommittee are not publicly available, the statements of the ABA—to which countless scholars have attributed the US failure to ratify the Genocide Convention—represent the best documentation of political debates surrounding the Convention, specifically the arguments against its ratification. These and other statements by the ABA reflect how intersecting domestic and foreign policy concerns characterized debates about the Convention.

On a domestic level, both elected political representatives and civil society actors, particularly the ABA, were concerned that ratifying the Genocide Convention would implicate the US for racial segregation and lynching. As Anton Weiss-Wendt argues, “The Senate Foreign Relations Subcommittee on Genocide wanted to make sure that the plight of blacks could not be interpreted within the meaning of the Genocide Convention.” Both Congressmen and civil society actors, including lawyers, reached out to Raphael Lemkin for clarification on the extent to which the Genocide Convention would require that lynching

be treated as an act of genocide. Such a viewpoint was also promoted by notoriously racist senators such as Strom Thurmond and Jesse Helms, who argued that the Genocide Convention would threaten southern states’ rights.

While the ABA did not explicitly connect its opposition of the Convention to racial violence, the ABA’s logic reflects a deep concern with the impact of the Convention on segregation in the South. When Finch raised the question of whether “the killing by an individual of one or two members of a group with intent to destroy those members as part of the group [would be] regarded as genocide,” he was tacitly inquiring about racial segregation and violence in the South, especially lynching. The ABA later recommended that a threshold of thousands of deaths be established for a given situation to constitute a genocide; that outlawing “direct and public incitement to commit genocide” was unnecessary; and that “responsibility of a state for genocide” would not mean “responsibility of a national government to pay damages for injuries to its own nationals.” Put together, these statements demonstrate the ABA’s concern that the Genocide Convention would render Jim Crow laws illegal, enable the punishment of individuals who publicly called for racial violence, and force the government to pay some form of reparations to victims of racial violence.

Concern on a domestic level about states’ rights was also connected to concern on a foreign policy level about Cold War competition. When the ABA argued that ratifying the Convention would make the US vulnerable to criticism of its treatment of Black Americans, the organization was particularly concerned that Soviet charges of genocide would undermine the US’s “moral reputation.” The ABA also criticized the Convention for excluding protections for economic and political groups, a concern that was directly related to competition with the Soviet Union. In 1950, the New York City Bar, for example, declared of the Genocide Convention that:

The exclusion of political and economic groups from the protection of the covenant vitiates, in our opinion, the entire instrument The excluded groups are the only ones that are presently in process or imminent danger of extermination. Undoubtedly these groups were denied protection as an appeasement to Soviet Russia and its satellites.

This statement demonstrates the extent to which the ABA saw genocide as a vehicle for US interests: because the US could not use the Genocide Convention to condemn the Soviet Union’s treatment of political

and economic groups, there was no strategic value in ratifying it.

While there is unfortunately a lack of documentation of the Senate subcommittee's deliberations, it is highly likely that similar concerns to those expressed by the ABA also drove the subcommittee to stall the Convention, not only in the short-term, but for the next twenty-one years. Only in 1970 did the Genocide Convention leave the Senate Foreign Relations Committee, and only in 1986, under Reagan, did the US finally accede to the Convention.

Conclusion

Why did the US play such a major role in criminalizing genocide in the immediate post-war period, including organizing and funding the IMT and assisting with the drafting of the Genocide Convention, only to fail to ratify the Convention for forty years? As I have demonstrated in this paper, US interest in criminalizing genocide, even in the immediate aftermath of the Holocaust, has been severely overstated. While US leaders expressed moral condemnation of Nazi leaders throughout World War II and during the IMT, the US government always prioritized strategic interest over moral and ethical concerns. At the IMT, the primary US strategic interest was in developing both the principle of individual responsibility and legal norms against aggressive war in order to reduce the chance of a future conflict by disincentivizing individual participation. Following the IMT, the US wanted to codify the prohibition on aggressive war into international law through UNGA Resolution 95(1), but was also compelled to assist with the drafting of the Genocide Convention in order to maintain its moral reputation and ensure that the Convention was favorable to its interests. The US delegation then weakened the Convention by eliminating cultural genocide, which would have the US vulnerable to criticism of its domestic human rights record, and preventive jurisdiction, which could have forced the US to act to prevent genocide in its capacity as a member of the United Nations Security Council.

The US failure to ratify the Genocide Convention is thus consistent with US foreign policy starting at least as early as the beginning of World War II onwards. At the same time, two specific, interrelated concerns

explain why the Convention stalled in the Senate Foreign Relations Committee. First, both elected representatives and civil society actors, especially the ABA, were concerned that the Convention would infringe upon US sovereignty and states' rights by criminalizing lynching and other forms of racial violence under international law. Second, opponents of the Convention feared that it would weaken the US position in relation to the Soviet Union by making the US vulnerable to criticism of its domestic human rights record without addressing the Soviet Union's treatment of political and economic groups.

The US therefore failed to ratify the Convention until 1988, under President Ronald Reagan. Scholars have offered multiple explanations for why Reagan supported the Convention, considering that such a position is inconsistent with his domestic and foreign policy agenda. One explanation is that Reagan was concerned that the US failure to ratify the Genocide Convention was hurting the US reputation, particularly in comparison to the Soviet Union, which ratified the Convention in 1954. Others argue that Reagan merely wanted to improve his re-election prospects, especially following a politically embarrassing incident in which the President visited the Bitburg memorial, where 49 SS officers were buried. Notably, these explanations focus either on US strategic interest or Reagan's own self-interest; no one argues that Reagan's support for the ratification of the Genocide Convention was rooted in genuine concern for the problem of genocide.

During the 1990s, the US famously failed to intervene in the Rwandan Genocide and only belatedly intervened to stop Serbian nationalist violence in the former Yugoslavia. Set in the context of US policy towards the criminalization of genocide from World War II onwards, these failures are not anomalies, but rather fully consistent with the broader trend in US foreign policy of prioritizing strategic interest over the prevention of mass violence against civilians. Even during and directly after the Holocaust—the paradigmatic example of genocide—the US was unwilling to focus its foreign policy on genocide prevention or punishment. It is therefore unfortunately unsurprising that this indifference has become a persistent characteristic of US foreign policy.